

AMENDMENT AND BASIC STRUCTURE

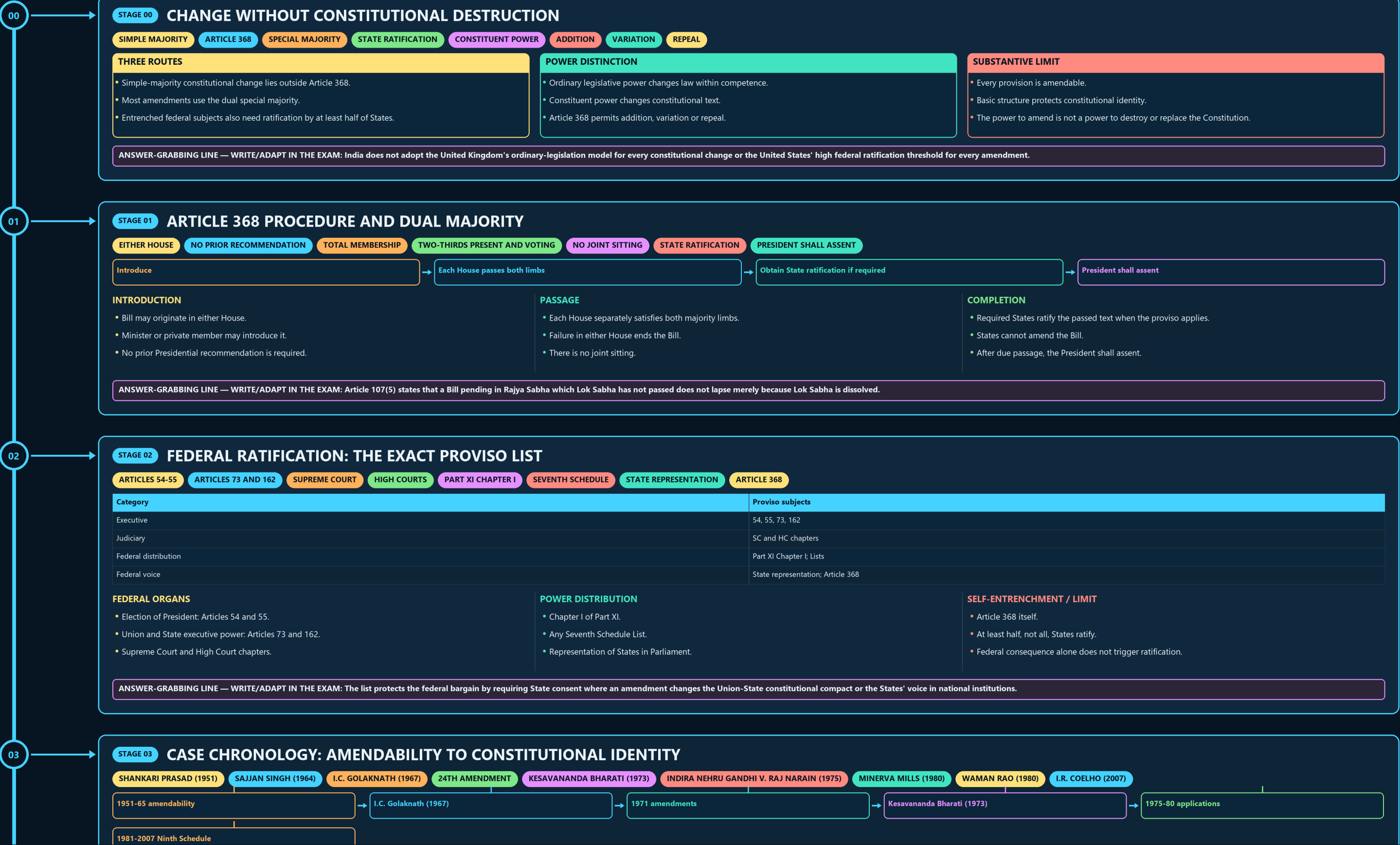
CHANGE ROUTES → ARTICLE 368 PROCEDURE → FEDERAL RATIFICATION → CASE CHRONOLOGY → BASIC ELEMENTS → NINTH SCHEDULE → ANJUM BOUNDARY → CURRENT EVIDENCE → DOCTRINE EVALUATION → PYQ/TRAPS → ANSWER ROUTES

Read the thick cyan rail from Stage 00 to the final core synthesis. The grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g4 • explicit approval of this exact generation is required • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



03

ARTICLES 54-55

ARTICLES 73 AND 162

SUPREME COURT

HIGH COURTS

PART XI CHAPTER I

SEVENTH SCHEDULE

STATE REPRESENTATION

ARTICLE 368

Category	Proviso subjects
Executive	54, 55, 73, 162
Judiciary	SC and HC chapters
Federal distribution	Part XI Chapter I; Lists
Federal voice	State representation; Article 368

FEDERAL ORGANS

- Election of President: Articles 54 and 55.
- Union and State executive power: Articles 73 and 162.
- Supreme Court and High Court chapters.

POWER DISTRIBUTION

- Chapter I of Part XI.
- Any Seventh Schedule List.
- Representation of States in Parliament.

SELF-ENTRENCHMENT / LIMIT

- Article 368 itself.
- At least half, not all, States ratify.
- Federal consequence alone does not trigger ratification.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The list protects the federal bargain by requiring State consent where an amendment changes the Union-State constitutional compact or the States' voice in national institutions.

04

STAGE 03

CASE CHRONOLOGY: AMENDABILITY TO CONSTITUTIONAL IDENTITY

SHANKARI PRASAD (1951)

SAJJAN SINGH (1964)

I.C. GOLAKNATH (1967)

24TH AMENDMENT

KESAVANANDA BHARATI (1973)

INDIRA NEHRU GANDHI V. RAJ NARAIN (1975)

MINERVA MILLS (1980)

WAMAN RAO (1980)

I.R. COELHO (2007)

1951-65 amendability

1981-2007 Ninth Schedule

I.C. Golaknath (1967)

1971 amendments

Kesavananda Bharati (1973)

1975-80 applications

AMENDABILITY CONFLICT

- Shankari Prasad (1951) and Sajjan Singh (1964) allowed FR amendment.
- I.C. Golaknath (1967) denied that power.
- The 24th Amendment restored constituent-power language.

IDENTITY LIMIT

- Kesavananda Bharati (1973): amend every provision, damage no basic structure.
- Indira Nehru Gandhi v. Raj Narain (1975) protected democratic elections and review.
- Minerva Mills (1980) protected limited power and FR-DPSP harmony.

NINTH SCHEDULE EXTENSION

- Waman Rao (1980) fixed 24 April 1973 as cut-off.
- I.R. Coelho (2007) required impact review after the cut-off.
- Judicial review remains part of the protected identity.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Kesavananda Bharati (1973) replaced an absolute bar on amending Fundamental Rights with a judicially enforceable limit protecting the Constitution's basic identity.

05

STAGE 04

BASIC-STRUCTURE ELEMENTS: NON-EXHAUSTIVE AND CASE-ATTRIBUTED

CONSTITUTIONAL SUPREMACY

DEMOCRACY

SECULARISM

FEDERALISM

RULE OF LAW

JUDICIAL REVIEW

INDEPENDENT JUDICIARY

LIMITED AMENDING POWER

GOVERNMENT FORM

- Constitutional supremacy.
- Republican and democratic government.
- Free and fair elections; secularism; federalism.

LEGAL ARCHITECTURE

- Separation of powers and rule of law.
- Judicial review and judicial independence.
- Limited amending power.

RIGHTS AND BALANCE

- Dignity, liberty and equality within the rights architecture.
- Harmony between Fundamental Rights and DPSP.
- The list is illustrative, not closed or unanimously authored.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Different judges in Kesavananda Bharati (1973) proposed overlapping lists; the narrow majority ratio is the limitation on destruction of basic structure, not one unanimous catalogue.

06

STAGE 05

NINTH SCHEDULE: POST-1973 IMPACT REVIEW

ARTICLE 31B

NINTH SCHEDULE

FIRST AMENDMENT

24 APRIL 1973

WAMAN RAO (1980)

I.R. COELHO (2007)

PART III IMPACT

REVIEWABLE

Find insertion date

Identify affected right

Test basic-structure impact

Frame narrow remedy

ORIGIN

- The First Amendment inserted Article 31B and the Ninth Schedule.
- Listing supplied a protective constitutional device.
- Placement occurs through constitutional amendment.

CUT-OFF AND TEST

- Waman Rao (1980) fixes 24 April 1973.
- I.R. Coelho (2007) reviews post-cut-off insertions.
- The inquiry asks whether protected Part III principles suffer basic-structure damage.

TRAPS

- Reviewability is not automatic invalidity.
- Listing is not permanent immunity.
- Pre-cut-off status does not erase every other constitutional issue.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 31B validates the Acts and Regulations placed in the Ninth Schedule notwithstanding inconsistency with Part III, subject to later basic-structure review of the constitutional amendment that grants that protection.

06

STAGE 06

ANJUM KADARI (2024): THE ORDINARY-STATUTE BOUNDARY

AMENDMENT AND BASIC STRUCTURE • TILE 2/4 • same master rows 1998-5232 of 9229 • continues below

- Dignity, liberty and equality within the rights architecture.
- Harmony between Fundamental Rights and DPSP.
- The list is illustrative, not closed or unanimously authored.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Different judges in *Kesavananda Bharati* (1973) proposed overlapping lists; the narrow majority ratio is the limitation on destruction of basic structure, not one unanimous catalogue.

STAGE 05 NINTH SCHEDULE: POST-1973 IMPACT REVIEW

ARTICLE 31B NINTH SCHEDULE FIRST AMENDMENT 24 APRIL 1973 WAMAN RAO (1980) I.R. COELHO (2007) PART III IMPACT REVIEWABLE

TRAPS

- | | |
|---|---|
| <ul style="list-style-type: none"> Waman Rao (1980) fixes 24 April 1973. I.R. Coelho (2007) reviews post-cut-off insertions. The inquiry asks whether protected Part III principles suffer basic-structure damage. | <ul style="list-style-type: none"> Reviewability is not automatic invalidity. Listing is not permanent immunity. Pre-cut-off status does not erase every other constitutional issue. |
|---|---|

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 31B validates the Acts and Regulations placed in the Ninth Schedule notwithstanding inconsistency with Part III, subject to later basic-structure review of the constitutional amendment that grants that protection.

STAGE 06 ANJUM KADARI (2024): THE ORDINARY-STATUTE BOUNDARY

CONSTITUTIONAL AMENDMENT ORDINARY STATUTE LEGISLATIVE COMPETENCE PART III CONCRETE PROVISION NO FREE-STANDING TEST 2024 INSC 831

EXAM CORRECTION

- | | |
|--|---|
| <ul style="list-style-type: none"> • Ordinary laws are tested through competence, Part III and other provisions. • Basic features can guide interpretation. • They do not become a free-standing super-Article. | <ul style="list-style-type: none"> • Identify Article X embodying the feature. • Do not invalidate a statute only through an undefined structural slogan. • Anjum Kadari (2024) supplies the current boundary. |
|--|---|

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Tribunal cases may use separation of powers and judicial independence, but the statutory defect should be connected to Articles governing judicial review, equality, court substitution or another express constitutional command.

STAGE 07 CURRENT EVIDENCE: 131ST BILL, 106TH COMMENCEMENT AND ARTICLE 334A

106TH AMENDMENT S.O. 1922(E) ARTICLE 334A COMMENCED NOT OPERATIONAL 131ST BILL DEFEATED PROPOSAL JUDICIAL REVIEW COUNTER-MAJORITARIAN

STATUS RULE

- The 2026 Bill was negated in Lok Sabha.
 - It illustrates dual-majority arithmetic.
 - It is not law, precedent or a current seat ceiling.
- Use exact source and date for each changing claim.
 - Commenced does not mean operational.
 - A defeated Bill is evidence, not law or precedent.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The 131st Bill is a defeated proposal, while the 106th Amendment has commenced but reservation still awaits Article 334A census-publication and delimitation gates.

STAGE 08 DOCTRINE EVALUATION: JUDICIAL REVIEW, NOT JUDICIAL SUPREMACY

UNWRITTEN LIMIT COUNTER-MAJORITARIAN CONSTITUTIONAL SUPREMACY FUTURE DEMOCRACY ACTUAL DAMAGE NARROW REMEDY

DISCIPLINE

- Article 368 creates limited constituent power.
- Future elections, rights, federal voice and review need protection.
- Minerva Mills (1980) prevents a limited power from making itself unlimited.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The doctrine is legitimate judicial review when courts identify a text-linked feature, prove actual constitutional damage and avoid converting disagreement into a policy veto.

STAGE 09 PRELIMS TRAPS AND VERIFIED PYQ CONTROL

106TH AMENDMENT

- S.O. 1922(E) commenced the framework on 16 April 2026.
- Article 334A still requires census publication and delimitation.
- Commencement does not mean operational reservation.

131ST BILL

- The 2026 Bill was negated in Lok Sabha.
- It illustrates dual-majority arithmetic.
- It is not law, precedent or a current seat ceiling.

STATUS RULE

- Use exact source and date for each changing claim.
- Commenced does not mean operational.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The 131st Bill is a defeated proposal, while the 106th Amendment has commenced but reservation still awaits Article 334A census-publication and delimitation gates.

08

STAGE 08

DOCTRINE EVALUATION: JUDICIAL REVIEW, NOT JUDICIAL SUPREMACY

UNWRITTEN LIMIT

COUNTER-MAJORITARIAN

CONSTITUTIONAL SUPREMACY

FUTURE DEMOCRACY

ACTUAL DAMAGE

NARROW REMEDY

CRITICISM

- The Constitution contains no closed basic-feature list.
- Judges review elected super-majorities.
- Open-ended identity reasoning can become uncertain.

DEFENCE

- Article 368 creates limited constituent power.
- Future elections, rights, federal voice and review need protection.
- Minerva Mills (1980) prevents a limited power from making itself unlimited.

DISCIPLINE

- Identify text and precedent.
- Prove actual damage, not policy dislike.
- Use a narrow, reasoned remedy.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: The doctrine is legitimate judicial review when courts identify a text-linked feature, prove actual constitutional damage and avoid converting disagreement into a policy veto.

09

STAGE 09

PRELIMS TRAPS AND VERIFIED PYQ CONTROL

ARTICLE 368

DUAL MAJORITY

STATE RATIFICATION

CASE CHAIN

BASIC ELEMENTS

NINTH SCHEDULE

ANJUM BOUNDARY

MAINS SPINE

PRELIMS CONTROL

- No joint sitting; President shall assent.
- Ratification applies to the exact proviso list.
- Basic structure is non-exhaustive; post-1973 listing is reviewable.

PYQ ROUTES

- 2 Mains and 8 Prelims are verified.
- 2024 Q66 official local key is D.
- 2025 Q58 official local key is A; older keys remain inferred.

STATUS TRAPS

- 131st Bill: defeated proposal, not law.
- 106th Amendment: commenced, not operational.
- Post-1973 Ninth Schedule insertion: reviewable, not automatically void.

MECHANISM / VERDICT — Classify the route, apply the exact constitutional text, preserve status labels and then select the closest option.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Exam precision depends on preserving the differences between amendment and ordinary law, reviewability and invalidity, and commencement and operational effect.

10

STAGE 10

10/15/20-MARK ANSWER ROUTES AND QUALIFIED VERDICT

10 MARKS

15 MARKS

20 MARKS

PROCEDURE

DOCTRINE

EVALUATION

QUALIFIED VERDICT

10 MARKS

- Direct thesis and three to four dimensions.
- Use two or three exact Articles/cases.
- End with one qualification and verdict.

15 MARKS

- Separate procedure from substantive limit.
- Use four to six linked evidence units.
- Add application plus criticism/defence.

20 MARKS

- Trace design, chronology and applications.
- Integrate current evidence without treating proposals as law.
- Conclude: amend, do not destroy or replace.

MECHANISM / VERDICT — Decode directive → choose mark scale → build claim-evidence-analysis-qualification chain → compress deliberately → deliver a constitutional-supremacy verdict.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 368 creates a wide constituent power, but procedure limits its exercise and the basic-structure doctrine limits its reach.

E

EXTRA

OPTIONAL ENRICHMENT: AMENDMENT VERSUS REPLACEMENT

OPTIONAL ONLY

CONSTITUTIONAL IDENTITY

REPLACEMENT

COMPARATIVE DOCTRINE

ASYMMETRIC RATIFICATION

ENRICHMENT

- Amendment preserves legal continuity; replacement claims a new constituent foundation.
- Comparative systems use text, eternity clauses or judicial doctrine.

USE WITH DISCIPLINE

- Comparative analogy cannot replace Indian cases.
- State ratification remains textually limited.
- Add only after the full Indian core is secure.

OPTIONAL STATUS — This enrichment is unnecessary for a competent core answer and remains subordinate to Article 368, Indian case law, current controls and PYQ analysis.

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